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When Counterterrorism Meets the Reform-Era Boundary: Rethinking the Draft Perpres on TNI Involvement

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Indonesia does not need persuasion that terrorism is a serious and persistent security problem. Episodes of violence, disrupted plots, and the long social consequences of fear and trauma have repeatedly placed public pressure on the state to respond quickly and decisively. In such contexts, proposals to mobilize all available state capabilities, including military capabilities, often gain intuitive appeal. Yet in Indonesia, the question of TNI involvement in counterterrorism is not merely operational. It is inseparable from the country's post-1998 institutional settlement, which sought to demarcate “defense” from “domestic security,” embed civilian supremacy, and strengthen accountability mechanisms after decades in which coercive authority was frequently concentrated and weakly supervised.

The leaked draft Presidential Regulation (Perpres) concerning the involvement of the Indonesian National Armed Forces (TNI) in addressing terrorism has therefore reactivated a familiar but unresolved dilemma: how to enhance state effectiveness against extraordinary threats without eroding the rule-of-law foundations and democratic safeguards established during the reform era. In this debate, the central issue is not the legitimacy of counterterrorism as a policy goal. Rather, it is the governance design of counterterrorism: the institutional division of labor, the legal basis for the deployment of armed force in civilian

space, the clarity of thresholds for military engagement, and the robustness of oversight and accountability mechanisms.

Legal and Institutional Context: Competing Normative Anchors

The government's justification, as widely stated in public discussion, draws on Law No. 5 of 2018 (the amendment to Indonesia's Terrorism Law), which anticipates implementing provisions concerning TNI involvement through a Presidential Regulation, following consultation with the House of Representatives (DPR). This legal direction is typically framed as a response to practical coordination problems: in high-consequence scenarios involving mass casualties, strategic targets, or sophisticated attack methods, ambiguity over authority and command can generate delays, duplication, and uncertainty. From this perspective, a Perpres is presented as an instrument to ensure rapid and orderly inter-agency action.

However, civil society organizations contest not only the draft's substance but also the appropriateness of a Perpres as the principal instrument for regulating military involvement in domestic counterterrorism. Their argument invokes a reform-era normative reference point: MPR Decree VII/2000, which is commonly interpreted as a constitutional-political marker of post-authoritarian reform. The decree emphasizes that TNI support to the police (Polri) in domestic security functions should occur at Polri's request and should be "regulated by law." The phrase "regulated by law" functions here as more than formal drafting language. It signals the expectation of stronger democratic legitimacy, broader deliberation, and more stringent oversight in policy areas involving coercive force and the potential limitation of rights.

This produces a structural tension. On one side, Law No. 5/2018 provides a pathway for a Perpres. On the other side, reform-era principles and the language of MPR Decree VII/2000 suggest that the normative threshold for military involvement in internal affairs should be higher than what executive regulation alone typically provides. The controversy, therefore, is not reducible to partisan preferences; it is a dispute over the hierarchy, adequacy, and democratic defensibility of the legal basis for security governance.

From "Exceptional Support" to "Expansive Mandate"

Substantively, civil society criticism focuses on the risk that the leaked draft extends beyond narrowly defined exceptional circumstances into an expansive and potentially elastic mandate. The draft reportedly frames the TNI role across deterrence, enforcement, and recovery. Each of these phases carries significant policy implications.

First, deterrence is reportedly defined to include intelligence, territorial, information operations, and "other necessary operations," with substantial discretion left to military

leadership regarding the form and content of such activities. In governance terms, broad delegations of discretionary authority in the security sector are inherently sensitive because they reduce the specificity of legal constraints and increase the difficulty of ex post auditing. Vague phrases such as “other operations” are particularly consequential: they can function as interpretive gateways through which practices not clearly anticipated by lawmakers become normalized over time.

Second, enforcement is reportedly conditioned on a presidential order authorizing deployment. While presidential authorization may be interpreted as an expression of civilian control, formal authorization does not, by itself, constitute a complete accountability mechanism. The more consequential questions concern operational safeguards: what criteria must be met before an order is issued; how “escalation” is assessed; whether the DPR has a meaningful role in review; and how compliance with criminal procedure is ensured in contexts where arrests, evidence handling, and prosecution remain central to a rule-of-law response.

Third, the draft reportedly adopts a broad scope of terrorism contingencies, including threats to high-level state leaders, Indonesian citizens and representatives abroad, foreign missions, vital national objects, ships and aircraft, and acts in maritime zones such as the Exclusive Economic Zone (EEZ), alongside expansive categories such as threats to ideology, sovereignty, and territorial integrity. The concern is not that these categories are irrelevant, but that their breadth increases the risk of overlap with ordinary domestic security matters. Overlap can generate institutional competition and blurred accountability, conditions that often degrade policy effectiveness and legitimacy in practice.

The Criminal Justice Model versus the Security Model

A central analytical distinction underlying civil society critique is the difference between a criminal justice model of counterterrorism and a security model. In a criminal justice model, terrorism is treated fundamentally as a crime—albeit an extraordinary one—requiring investigation, evidence, prosecution, trial, and protections for the rights of suspects and victims. This model does not imply softness; it implies procedural discipline, judicial oversight, and the maintenance of legitimacy through legality.

A security model, by contrast, prioritizes anticipatory and preventive operations and may rely more heavily on intelligence-based measures, expansive deterrence practices, and coercive authority that is harder to scrutinize publicly. Many democracies adopt hybrid arrangements, but the key issue is how the balance is governed. When the military becomes involved not only in high-risk tactical support but also in deterrence and recovery, the institutional logic may shift toward the security model, potentially weakening procedural anchors if safeguards are not carefully designed.

In Indonesia, this risk is amplified by historical experience. The concern is not a simplistic claim that military involvement is inherently illegitimate, but a more specific observation: in systems where mandates are broad and definitions are loose, coercive practices can become normalized, oversight becomes difficult, and institutional boundaries erode incrementally rather than through explicit political decisions.

Coordination and the Problem of Overlapping Authority

Indonesia already possesses a dense counterterrorism ecosystem: Polri as the primary law enforcement institution, National Counter Terrorism Agency (BNPT) as a coordinator for prevention and deradicalization efforts, State Intelligence Agency (BIN) as a strategic intelligence actor, and ministries and local governments with roles in reintegration and social resilience. Introducing a broad TNI mandate across deterrence and recovery raises coordination risks. The practical questions are well known in security governance: who sets priorities; how intelligence is shared and controlled; what performance indicators define success; and who bears responsibility for rights violations or operational failures.

In many contexts, institutional overlap does not increase capacity; it increases friction. Without clear command arrangements and transparent accountability, overlap can produce duplication, inconsistent operational standards, and policy disputes that the public experiences as confusion or impunity. These dynamics can erode public trust, which is itself a core component of counterterror effectiveness, given that prevention relies heavily on community cooperation, credible intelligence, and perceived fairness.

Transparency and Democratic Legitimacy

The controversy has been intensified by the informational environment: debate has been driven by a leaked draft and public claims of consultation, while legislative actors have reportedly indicated that they had not received a formal draft for deliberation. This asymmetry is politically consequential. In security policy, transparency does not require disclosure of tactics or sensitive operational details. It requires clarity on legal design: definitions, thresholds, command models, oversight arrangements, and accountability pathways. Where those elements are unclear, publics often infer worst-case intentions, and the debate polarizes into “security at all costs” versus “rights at all costs,” a framing that obscures the real policy challenge, designing an effective response that remains consistent with democratic constraints.

The debate surrounding the draft Perpres should be treated as an opportunity rather than an obstacle. In democratic security governance, legitimacy is not an optional add-on; it is a condition for sustainable effectiveness. Counterterrorism policies that weaken accountability and blur institutional boundaries may appear forceful in the short term, yet they risk undermining public trust and inter-agency coherence, two resources that are central to

preventing and managing terrorism over time. The central challenge, therefore, is not whether the state should be strong, but how strength is organized through tightly defined mandates, clear leadership structures, and oversight mechanisms commensurate with the gravity of deploying armed force in civilian space.

If the goal of the draft Perpres is to strengthen Indonesia's capacity to respond to terrorism, then it should be evaluated against two standards simultaneously: operational effectiveness and democratic defensibility. A credible framework must show not only that it can mobilize capability quickly under extraordinary conditions, but also that it prevents normalization of coercive practices, preserves police primacy in law enforcement, and provides auditable oversight mechanisms.

The questions for further discussion, among other, are; What precise conditions should constitute a terrorism contingency that justifies TNI involvement, and what indicators should be used to prevent overly discretionary interpretation? If presidential authorization is the trigger, what procedural criteria and evidentiary standards must be satisfied before an order is issued, and what review mechanisms ensure that authorization is substantively accountable? How should the "regulated by law" principle associated with MPR Decree VII/2000 be reconciled with Law No. 5/2018's instruction to regulate details through a Perpres? Does this require legislative strengthening, interpretive clarification, or additional oversight architecture? In joint operations, what command arrangement best protects rule-of-law principles—police-led operations with military support, or a different model with limited triggers and a clear path back to normal policing?

The next questions would be: Which deterrence activities are legitimate and necessary, and how can the framework avoid elastic categories (such as "other operations") that are difficult to audit and may encourage mandate expansion? What recovery functions, if any, require military involvement, and which should remain primarily civilian to preserve accountability and avoid blurring institutional roles? What forms of oversight (DPR reporting requirements, independent monitoring, judicial review, post-operation audits) are feasible and credible in Indonesia's political-institutional context? If violations occur, what investigation and adjudication pathways apply, and how is transparency ensured without compromising operational security? How should Indonesia evaluate counterterror success in a democratic system? What explicit limits should be established to ensure that extraordinary counterterror measures do not become routine features of domestic governance?